



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16513

July 15, 2015

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

EXPIRATION DATE: December 31, 2015

1. GRANTEE: U.S. Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF)
Washington, DC
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-way transportation in commerce of unapproved fireworks to a disposal facility. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that Class 1 materials must be approved prior to transportation, except as provided herein, and § 172.320 in that the marking requirements are waived.
5. BASIS: This emergency special permit is based on the application of U.S. Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) dated

July 15, 2015

June 16, 2015, submitted in accordance with § 107.117 and a determination that it is necessary to prevent injury to persons or property.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Fireworks	1.1G	UN0333	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The fireworks may be overpacked in UN11G fiberboard intermediate bulk containers (IBCs). Individual outer packages contained within the overpackages may be marked and labeled 1.4G Fireworks.

b. OPERATIONAL CONTROLS -

- (1) Two (2) one-way shipments from Ravenna, OH to Colfax, LA for disposal are authorized. No further transportation is authorized.
- (2) Transportation must be completed in the shortest time-frame possible while adhering to all federal, state and local regulations relative to the operation of a commercial motor vehicle on a public highway at all times. As much as possible, transportation must be conducted so as to avoid rush-hour traffic, avoid high density traffic, and be accomplished during night-time hours.
- (3) No type of oxidizer, fuel, flammable solid or combustible device or item may be transported with the fireworks.
- (4) The appropriate PHMSA Safety Regional Office must be notified at least 48 hours in advance of any shipment.
- (5) A statement must be provided to DOT via email (specialpermits@dot.gov) when the shipment arrives at the final destination.
- (6) A contract carrier must be used that holds a valid safety permit from the Office of Motor Carrier Safety.

c. The contract carrier authorized to transport under this special permit is Tri-State Motor Transit Co., 8141E 7th Street, Joplin, MO 64802.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each package must be marked "DOT-SP 16513" in accordance with § 172.301(c). The marking requirements of § 172.320 are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

July 15, 2015

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: Dunham